

DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO 305 W. Colorado Ave. P.O. Box 919 Telluride, CO 81435	DATE FILED June 26, 2026 4:29 PM FILING ID: 7F9DEDBBF37B4 CASE NUMBER: 2026CV30011
Plaintiff: TSG SKI AND GOLF, LLC, a Colorado Limited Liability Corporation, v. Defendants: JULIE MEEHAN FEE, an individual; MARTINIQUE PROHASKA, an individual; and PAUL WISOR, an individual	
<i>Counsel for Plaintiff TSG Ski and Golf, LLC:</i> Troy A. Eid, #21164 John A. Wharton, #47776 Harriet Retford, #44958 GREENBERG TRAURIG, LLP 1144 15th Street, Suite 3300 Denver, CO 80202 (303) 572.6500 eidt@gtlaw.com ; john.wharton@gtlaw.com ; retfordh@gtlaw.com	▲ COURT USE ONLY ▲ Case No.: 2026CV030011 Division: 5
COMBINED RESPONSE TO DEFENDANTS' MOTIONS TO DISMISS	

Plaintiff TSG Ski and Golf, LLC (“Telski”), by and through undersigned counsel, respectfully submits this Response to Motions to Dismiss filed by Defendants Martinique Prohaska (“Prohaska”) and Paul Wisor (“Wisor”), and Defendant Meehan Fee (“Fee”), and in support states as follows:

INTRODUCTION

Defendants held high-level political office in the Town of Telluride (“Telluride”) and the Town of Mountain Village (“TOMV”) in Colorado (collectively, the “Towns”). The First

Amended Complaint, which added three exhibits, including transcripts of the California meeting and the Purchase Offer itself, alleges facts establishing that, taken as true for purposes of this stage in the litigation, plausibly allege that Defendants leveraged their public powers and positions as Mayor and Town Manager of TOMV to prolong a ski patrol labor strike and to purposely halt action by TOMV on public issues related to water prices for Telski, regional spending on flight development to Telluride, and approval of employee housing projects for the purpose of coercing Telski into selling a controlling interest in the Telluride Ski Resort to a private investment group (Telluride Ski Resort Fund) on whose behalf Prohaska, Fee, and Wisor were acting.

The documents obtained from CORA requests to the Towns—specifically drafts of the Purchase Offer, non-disclosure agreements, and objective summaries—revealed that not only did Defendants know about an effort to take control of Telski without informing their constituents, they were actively involved in preparing, editing, and presenting the Purchase Offer to Telski and were acting as representatives of the private purchaser. To further support that Defendants were acting in their private capacity while also leveraging their public authority, TOMV, in response to the CORA requests, asked this Court to perform an *in camera* review of documents in the possession of TOMV to determine if they were “public records” subject to production. Following its review, the Court determined that these documents were, in fact, not “public records” and prohibited their disclosure to Telski. Telski has not seen these records, which are presumably related to Defendants’ involvement with the Purchase Offer, and thus can only speculate as to what they contain at this juncture.

Defendants' Motion to Dismiss asks this Court to prematurely evaluate and dismiss a complex case involving an egregious abuse of public office for personal financial gain and control of the driving economic force of the Towns, the Telluride Ski and Golf Resort. Defendants improperly assert that the Court must ignore Telski's well-pleaded factual allegations (that plead facts plausibly supporting each necessary element of each cause of action) by engineering an artificial contradiction between the Complaint and its attached exhibits. However, accepting all well-pleaded facts as true (as is required by the Court at the C.R.C.P. 12(b)(5) stage), Telski has set forth plausible claims for tortious interference and civil conspiracy and the Court should deny the Motions to Dismiss.

FACTUAL BACKGROUND

Prohaska, who is also a member of the Telluride Ski Patrol, was the mayor of TOMV prior to her resignation on January 14, 2026, hours after learning that TOMV requested a private, third-party investigation into Defendants' dealings with Telski and their secret meeting with Telski's principal, Chuck Horning ("Horning"), in California. Wisor was the Town Manager of TOMV and Fee is the former mayor *pro tem* and councilmember of the Town of Telluride. As senior elected officials, these individuals were at the epicenter of escalating tension between the Towns and Telski, as has been widely reported in the media. These tensions came to a head in December 2025, when the Telluride Ski Patrol went on strike on December 27, 2025, closing the resort at the peak of the holiday season leading to the loss of several millions of dollars in revenue for Telski. One day prior to the strike, on December 26, 2025, Fee and Prohaska contacted Horning and Telski and asked to arrange a meeting in California to discuss the pending

ski patrol strike. The actual agenda for the meeting was very different. Rather than discuss how the Towns would be responding to the strike, Fee and Prohaska stated that they represented a group of investors who were interested in purchasing the resort. They told representatives of Telski that they would be able to get the ski patrol back to work – but only if a controlling share in the resort was sold to an investment entity that they themselves managed.

The two officials presented their offer—formally executed with their signatures—to Telski. Telski also alleged, with supporting evidence, that Wisor was an author on an ancillary document and, in fact, TOMV has since released an investigative report stating that Wisor was the primary author of the other documents related to the Purchase Offer, as well as the moving force behind the proposed transaction. The Purchase Offer includes an Appendix B entitled “Additional Consideration,” which states that “[i]mmmediately following the execution of this Agreement the following will occur:

Ski Patrol. Buyer will cause the Town of Mountain Village and the Town of Telluride to take commercially reasonable efforts to broker a cessation to the Ski Patrol strike with Patrol agreeing to the offer made by Seller to Patrol.

Water Prices. Buyer will cause the Town of Mountain Village and the Town of Telluride to hold water prices for Seller’s snowmaking at 2024 levels for the 2025-2026 season.

Housing. Within three (3) months of Closing, the Town of Mountain Village and the Town of Telluride shall enter into partnerships with TSG to ensure stable, high quality housing for TSG’s employees.

Flights. Within six (6) months of Closing, the Town of Mountain Village and the Town of Telluride shall modify regional spending on flight development within targeted key markets.

Capital Investment. Buyer commits to at least \$50,000,000 in capital upgrades

to the Telluride Ski Resort.”

Thus, it is not Telski’s speculation that draws a connection between the proposed private sale and official acts which the Towns had either taken, withheld, or threatened in the months preceding the meeting in late December and which caused it to incur substantial expense and damage. It is the Defendants’ own words and representations, as set forth in the First Amended Complaint. This is sufficient “to raise a right to relief ‘above the speculative level.’” *Warne v. Hall*, 2016 CO 50, ¶ 8 (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007)).

LEGAL STANDARD

“Motions to dismiss for failure to state a claim under C.R.C.P. 12(b)(5) are viewed with disfavor.” *Begley v. Ireson*, 2017 COA 3, ¶ 7. A trial court may grant a Rule 12(b)(5) motion only “if the factual allegations in the complaint, taken as true and viewed in the light most favorable to the plaintiff, do not present plausible grounds for relief.” *Id.* at ¶ 8. A complaint need only plausibly allege the plaintiff is entitled to the relief requested and “enough to raise a right to relief ‘above the speculative level.’” *See Warne v. Hall*, 2016 CO 50, ¶ 8 (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007)).

ARGUMENT

I. Telski Has Plausibly Alleged Tortious Interference with Prospective Business Relations (Claim I)

Tortious interference with a prospective business advantage “requires a showing of intentional and improper interference preventing formation of a contract.” *Amoco Oil Co. v. Ervin*, 908 P.2d 493, 500 (Colo. 1995). To establish a claim for tortious interference with

prospective business relations, a plaintiff must show (1) the plaintiff must have had a prospective business or contractual relationship with a third party (2) the defendant must have intentionally interfered with that prospective relationship, (3) the interference was improper, and (4) the improper interference must have prevented the formation of the contract or continuation of the prospective relationship, causing the plaintiff pecuniary harm. *Id.* Telski has plausibly alleged all elements.

i. Telski plausibly alleged that it had prospective business relations with customers of the ski resort.

It is undeniable that Telski had prospective business relations with customers of the ski resort who intended to purchase lift tickets to ski or snowboard during the holiday seasons. “The expression, prospective contractual relation, is not used ... in a strict, technical sense[,] [and] [i]t is not necessary that the prospective relation be expected to be reduced to a formal, binding contract.” *Id.* at 500, quoting Restatement (Second) of Torts § 767 (1979). This may include ongoing business relationships such as the purchase of goods and services by customers. *Id.* Telski operates a ski resort that was shut down for two weeks during peak ski season. It undeniably had ongoing and prospective business arrangements that were disrupted. Telski has obviously and plausibly pleaded this element in the First Amended Complaint. *See* Am. Compl., ¶ 80.

ii. Telski plausibly alleged that Defendants intentionally interfered with that prospective relationship, and that such interference was improper.

Defendants leveraged their power as publicly elected officials to prevent Telski from selling lift tickets unless it capitulated to their demands and sold a controlling interest of the

resort to their private investment group. Such allegations demonstrate intentional and improper conduct that resulted in Telski losing weeks of resort revenue during peak ski season. “[T]he interference must be both intentional and improper.” *Amoco Oil Co.*, 908 P.2d at 501. In situations where the alleged interference closely resembles legitimate business conduct or other legitimate activity, there are a number of factors that may be taken into account, including motive, the interests of the various parties, and the interests of the public, *id.*, but there is no legitimate reason why the mayor of a Colorado municipality would promise acts within the government’s power and control as consideration for a private financial transaction. The seven factors Defendants discuss in their Motions, citing *W.O. Brisben Companies, Inc. v. Krystkowiak*, 66 P.3d 133, 136 (Colo. App. 2002), derive from the Second Restatement and are applicable when the intentional act closely resembles legitimate business competition or another lawful activity, but are not relevant here where facts have been alleged that would show an activity that is plainly illegal and unauthorized. Even if they were relevant, factors such as “the nature of the conduct” and the “public interest” suggest tortious interference or are too fact intensive to be fully adjudicated at the pleadings stage.

Defendants argue that Telski fails to allege an improper act. To the contrary, Telski explicitly alleges that Defendants used the immense leverage of their public offices, including threats of regulatory obstruction and withholding municipal approvals, to force the sale of a private business into an investment fund they controlled. The timeline itself creates a highly plausible inference of intentionality: Defendants Fee and Prohaska reached out to Telski on

December 26, 2025—the day before the ski patrol strike even commenced —claiming they held the key to resolving an impending operational shutdown if Telski met them in California.

Conditioning public acts—freezing water prices, granting housing partnerships, altering regional flight spend, or facilitating the end of a labor strike—on a private 51% equity transfer constitutes classic improper leverage under Colorado law. *See* C.R.S. § 24-18-103 (“The holding of public office or employment is a public trust, created by the confidence which the electorate reposes in the integrity of public officers, members of the general assembly, local government officials, and employees. A public officer, member of the general assembly, local government official, or employee shall carry out his duties for the benefit of the people of the state ... A public officer, member of the general assembly, local government official, or employee whose conduct departs from his fiduciary duty is liable to the people of the state as a trustee of property and shall suffer such other liabilities as a private fiduciary would suffer for abuse of his trust.”).

The First Amended Complaint alleges sufficient facts to establish a credible claim that the Defendants engaged in such wrongful acts – facts which consist largely of statements by the Defendants themselves. It is important to note that Plaintiff does not allege that Defendants’ statements were necessarily truthful, complete or internally consistent – merely that they took place and gave rise to a reasonable inference that Defendants had employed their public office to pressure Telski into a position where Defendants and their affiliates could obtain control over the company, at the cost of significant business disruption and expense. Defendants cannot claim that Plaintiff failed to state a claim for relief because they, themselves, made inconsistent representations about their authority and aims. Defendants are all sophisticated actors who were

speaking on a matter of considerable public and private importance and with the benefit of advance thought and preparation. It is not unreasonable that they should be taken at their word – at least at the initial pleading stage.

The cases which Defendants cite for the proposition that the court is not required to credit allegations that are contradicted by the attached exhibits all deal with contract disputes where the contract was attached to the complaint or motion to dismiss, enabling the court to interpret the contract language as a matter of law. *Gorsuch, Ltd., B.C. v. Wells Fargo Nat. Bank Ass'n*, 771 F.3d 1230, 1238 (10th Cir. 2014); *GFF Corp. v. Associated Wholesale Grocers, Inc.*, 130 F.3d 1381, 1385 (10th Cir. 1997); *Matney v. Barrick Gold of N. Am.*, 80 F.4th 1136, 1151 (10th Cir. 2023). The situation here is entirely different. Defendants made various oral and written statements, some of which were more cautious and circumspect than others but which, “taken as true and viewed in the light most favorable to the plaintiff,” present a plausible claim for relief. *Begley v. Ireson*, 2017 COA 3, ¶ 8.

A careful reading of the transcript attached as Exhibit 2 to the Amended Complaint shows that Defendants were cagey about identifying who they represented and alternated between statements suggesting a strong assertion of government authority and statements that were more cautious. *See* Am. Compl. at ¶ 49, where Prohaska states that the “Board” would be able to “shortcut a lot of government permission” that Telski had been persistently unable to obtain. An investigative report issued by the Town of Telluride on June 8, 2026, after Telski filed the First Amended Complaint, found that the Purchase Offer “evolved” over several drafts and that commitments in Exhibit B derived from several conversations between the parties and

“evolved” over four separate drafts. Investigations Law Group, Executive Summary Town of Telluride (June 8, 2026) at 9,

<https://www.telluride.gov/DocumentCenter/View/15570/Independent-Investigation---Executive-Summary>. “The evidence shows not that Fee set out to use her office as a negotiating tool, but

that as the effort developed, the line between her personal role and her governmental role became increasingly difficult to maintain, and was not maintained in the representations set forth in Exhibit B and in her verbal assurances about Council conduct.” *Id.* at 10. Telski does not, at present, take a position on the accuracy or completeness of this investigative report, but it does demonstrate that the existence of ambiguity and conflicting signals is not an artifact of pleading. The facts themselves were complex and evolving, which does not mean that they were innocent or non-tortious or that they did not cause damage to Telski.

iii. Telski plausibly alleged that Defendants’ interference caused pecuniary harm.

“But for Defendants’ interference, Telski would have been operational and able to contract with and serve its customers, business partners, and the community.” Am. Compl. ¶ 84. Defendants attempt to demonstrate that Telski’s allegations are “contradictory,” but fail to establish any coherent contradictions. Nor do they explain how their quibbles with the transcript warrant dismissal of a plausibly alleged Complaint. They point to Exhibit 2, where Telski owner Horning states the strike “affects me emotionally, but not financially,” to argue that damages are completely refuted. This argument fails as a matter of law for two distinct reasons. First, the plaintiff in this action is TSG Ski and Golf, LLC, a limited liability company, not Chuck Horning individually. Horning’s commentary on his personal financial resilience does not erase or

contradict the reality that the corporate entity suffered millions of dollars in lost lift ticket sales, skipped reservations, and operational damage during a 10-day shutdown at the absolute peak of the holiday season. Second, a court cannot weaponize a single defensive statement made by a business owner during a high-stakes negotiation to defeat a complaint at the pleading stage. Defendants do not refute the statements made by either Fee or Prohaska in the transcript; in fact, Fee has asked the Court to strike any reference to the statements, presumably because they are so problematic for her. Viewed in the light most favorable to Telski, Horning's statement was not refuting that Telski lost significant revenue as a result of the resort closure; rather, it was meant to reject the extortionate leverage being applied by Defendants.

II. Telski Has Plausibly Alleged Civil Conspiracy (Claim II)

To state a claim for civil conspiracy, a plaintiff must show: (1) two or more persons; (2) an object to be accomplished; (3) a meeting of the minds on the object or course of action; (4) one or more unlawful overt acts; and (5) damages. *Walker v. Van Laningham*, 148 P.3d 391, 396 (Colo. App. 2006).

i. Telski plausibly alleged, and supported the allegations with recorded testimony, a clear meeting of the minds and coordinated plan by Defendants.

Defendants claim there are no allegations supporting a unified agreement. However, Telski has alleged that Fee and Prohaska jointly traveled across the country to deliver a unified written "Offer to Purchase" under an investment fund they collectively controlled, and that Wisor actively prepared and facilitated the transaction documents behind the scenes. "Conspiracies are

often tacit or unwritten in an effort to escape detection, thus necessitating resort to circumstantial evidence to suggest that an agreement took place[,] [but] [h]ere, by contrast, the concerted conduct is both plainly documented and readily available.” *Robertson v. Sea Pines Real Est. Companies, Inc.*, 679 F.3d 278, 289–90 (4th Cir. 2012).

ii. Telski plausibly alleged that Defendants engaged in an unlawful act by breaching their fiduciary duty to the Towns.

Defendants argue that because Telski cannot enforce C.R.S. § 24-18-103 via a private right of action, it cannot serve as the basis for a conspiracy. This is a mischaracterization of Colorado law. Telski is not bringing a private statutory claim under C.R.S. § 24-18-103. Rather, Telski is properly citing Defendants’ violation of their statutory fiduciary duties as public officials as the requisite unlawful overt act to satisfy a common-law civil conspiracy claim. It is well-settled in Colorado that a breach of an established statutory duty can serve as the unlawful predicate for a civil conspiracy claim. *Double Oak Const., L.L.C. v. Cornerstone Dev. Int’l, L.L.C.*, 97 P.3d 140, 146 (Colo. App. 2003), overruled on unrelated grounds by *L.H.M. Corp., TCD v. Martinez*, 499 P.3d 1050 (Colo. 2021) (“There is no requirement of an underlying garden variety “tort” to establish a claim for civil conspiracy. Rather, the elements for a civil conspiracy claim require that the underlying acts be unlawful and create an independent cause of action.”).

iii. Defendant Paul Wisor participated in the conspiracy.

Wisor argues that the Complaint is devoid of any allegations suggesting he acted improperly. This ignores critical documents—including the Purchase Offer itself—and their metadata derived via Telski’s Colorado Open Records Act (“CORA”) request to TOMV. These documents, as described in Telski’s Amended Complaint, established that while the damaging ski

patrol strike was actively underway, Wisor was secretly drafting a Microsoft Word “Non-Disclosure Agreement” explicitly tailored to facilitate the proposed transaction to purchase a controlling interest in the Telluride Ski Resort. As Town Manager, Wisor maintained administrative control over the exact municipal elements listed as “Additional Consideration” in Appendix B, such as water system operational costs and building permits. Wisor’s hidden drafting of transactional documents creates a highly plausible inference that he acted as an active, insider architect of the conspiracy to transfer control of the Telluride Ski Resort from Telski to a private investment group owned and controlled—at least in part—by Defendants in their individual capacity. His participation was not subtle or speculative. He drafted at least one of the key documents. As a result, Telski plausibly alleged all elements required to demonstrate that Wisor, along with Fee and Prohaska, engaged in a civil conspiracy to unlawfully take control of the Telluride Ski and Golf Resort. The Court should not tolerate this kind of abuse of public office and should thus deny Defendants’ Motions to Dismiss in their entirety. A neutral factfinder should be permitted to evaluate the evidence and make a determination as to the merits of Telski’s claims.

CONCLUSION

WHEREFORE, based on the foregoing, the First Amended Complaint sets forth explicit dates, precise text from a written purchase offer, and metadata tying public officials to an ongoing operation designed to economically leverage Telski’s privately owned and independent ski resort. Telski has easily cleared the low threshold of facial plausibility required to survive a

motion to dismiss. TSG Ski and Golf, LLC respectfully requests that the Court deny Defendants' Motions to Dismiss in their entirety.

Respectfully submitted this 26th day of June 2026.

GREENBERG TRAURIG LLP

/s/ Troy A. Eid

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*Attorneys for Plaintiff TSG Ski and Golf,
LLC*

CERTIFICATE OF SERVICE

I hereby certify that on this 26th day of June 2026, a true and correct copy of the foregoing **Combined Response to Defendants' Motions to Dismiss** was electronically filed with the Clerk of the Court using the Colorado Courts E-Filing system.

/s/ Hanh Nguyen

Hanh Nguyen